

Emergency Motion for District Stay Pending Mandamus

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 43 — Filed March 30, 2026

Cinder Lake moves on an emergency basis for a district-court stay of the March 25 production command while it seeks a writ of mandamus. Production is due April 1. The requested stay is limited to the complete investigation files; ordinary nonprivileged discovery may continue.

Cinder Lake has not yet disclosed the protected files to Calder under the compelled-production order. Maintaining that status quo allows meaningful consideration of the asserted privilege error.

Procedural Posture and Requested Duration

The Court denied reconsideration earlier on March 30 and permitted a separately supported stay motion. Cinder Lake intends to file an original writ petition and emergency motion in the court of appeals before the production deadline.

It asks this Court to stay production until the appellate court resolves emergency relief and, if a writ proceeding continues, until further order. Cinder Lake will comply promptly if relief is finally denied and the deadline is reset.

Likelihood and Clear Error Argument

Cinder Lake argues there is a strong question whether Rule 502(a) can begin without identification of protected information actually disclosed. The August 21 letter contains corporate conclusions and remediation but no counsel or witness communication.

The challenged order then uses the shared subject to compel the complete memorandum, interview communications, drafts, litigation assessments, and advice. Cinder Lake contends that categorical step conflicts with document-specific privilege and work-product principles.

Irreparable Harm

Once Calder and her litigation team receive counsel's advice, source communications, and mental impressions, confidentiality cannot be restored by a later ruling. Exclusion at trial would not undo strategic knowledge or return the parties to the present position.

The seven-calendar-day deadline creates this harm before ordinary postjudgment review. Cinder Lake cites *In re Fluor* only as an unpublished, nonprecedential persuasive analogy involving a seven-day privilege-production order and no disclosed communication.

Balance of Equities

A short stay does not prevent Calder from obtaining ordinary business records, deposing firsthand witnesses, or litigating her retaliation claim. Public counterparts identify the investigation categories and preserve the sealing dispute. The complete copies remain available for lawful review.

Without a stay, Cinder Lake loses the confidentiality interest before any appellate decision. Calder's delay interest can be reduced through expedited briefing and continuation of all unrelated discovery.

Public Interest and Scope of Writ Request

The public interest supports both legitimate discovery and stable attorney-client confidentiality. Cinder Lake will seek partial relief: vacatur of categorical waiver and the seven-day command, followed by document-specific review. It will not ask the appellate court to bar all related discovery.

That limited request preserves Calder's access to nonprivileged facts while preventing a disputed all-or-nothing disclosure. No real patient, agency, or urgent public-safety issue is involved.

Relief and Certification

Cinder Lake asks the Court to stay only paragraphs compelling production by April 1. Mara Voss certifies that she notified Nina Ashe of this emergency motion and proposed expedited response by March 31. Ashe stated Calder would oppose.

Submitted March 30, 2026. Cinder Lake requests a ruling before 10:00 a.m. on April 1 so it may seek timely appellate relief if necessary.